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Case Number: NAIH-733-1/2023.

Subject: Decision establishing a violation

(NAIH-1249/2022.)

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) in response to the application submitted by [...] (address: [...]; hereinafter: Applicant) received by the Authority on January 21, 2022, and also extending the procedure ex officio regarding [...] (headquarters: [...]; hereinafter: Respondent) concerning the copying of identity cards of the Applicant and the affected job applicants, as well as the practice of requesting consent for the taking of photographs, audio, and video recordings during the job application process – in the case of the Applicant, in an official presenter position – and the publication of these recordings in the press, makes the following decisions in the data protection authority procedure:

1. The Authority rejects the Applicant's request.
2. The Authority establishes ex officio that the Respondent violated
 - Article 5(1)(c) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;
 - Articles 13(1)-(2) of the General Data Protection Regulation.
3. The Authority orders the Respondent ex officio to
 - cease the data processing related to the complete copying of documents and delete previously made unnecessary copies.
 - provide appropriate information to the data subjects regarding the data processing examined in this procedure and its circumstances.
4. Due to the violations established in point 2, the Authority imposes a data protection fine of 200,000 HUF, that is, two hundred thousand forints on the Respondent.

* * *

The Respondent must take the measures prescribed in point 3 and provide written proof to the Authority within 30 days of receiving this decision, along with supporting evidence.

The data protection fine must be paid within 30 days from the date this decision becomes final to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425).

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It must be paid in favor of 0000 0000. When transferring the amount, reference must be made to NAIH-733/2023. FINE.

If the Applicant fails to fulfill the obligation to pay the fine by the deadline, they are required to pay a late fee to the above account number. The amount of the late fee corresponds to the statutory interest, which is equal to the central bank base interest rate valid on the first day of the calendar half-year affected by the delay.

In the event of non-compliance with the obligations set out in point 3, as well as failure to pay the data protection fine and the late fee, the Authority will order the enforcement of the decision.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit with a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the subject of the lawsuit is subject to the right of fee exemption. Legal representation is mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I. Procedure

(1)

On January 20, 2022, the Applicant submitted a request to the Authority to initiate a data protection authority procedure, in which they objected to the fact that during the ongoing employment relationship establishment procedure with the Respondent – even before the actual establishment of the relationship – they were required to fill out consent statements, which allowed for photographs, audio, and video recordings to be made of them during work – in an official presenter position – which could be published in the press without additional compensation. Furthermore, according to the Applicant, they were also made to fill out a consent statement allowing for copies of their official documents to be made.

(2)

According to the request, the Applicant filled out the consent statements in such a way that they crossed out the word "consent," thus, according to their intention, they did not consent to the data processing.

(3)

According to the request, after the Applicant objected to the consent statements, the employment relationship with the Respondent was not established.

(4)

The Applicant requested that the Authority investigate within the framework of the data protection authority procedure how voluntary and lawful the preliminary data provision and the request for consent were during the employment relationship establishment procedure experienced with the Respondent. The Applicant also requested that the Authority determine and sanction the unlawful nature of the audio recordings made during work, as well as the copying of official documents, and the relationship between the refusal to establish the employment relationship and the refusal of consent.

(5)

Considering that the Applicant did not clearly specify the facts and evidence supporting the alleged violations related to the supposed infringement in their request, as well as their explicit request for a decision regarding the remedy of the infringement they suffered, the Authority...

1 The form for initiating the administrative lawsuit is the NAIH_K01 form: NAIH_K01 form (2019.09.16.) The form can be filled out using the general form filling program (ÁNYK program). The form is available at the following link: <https://naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

January 28, 2022, the Authority called upon the Applicant to remedy the deficiencies in the application under case number NAIH-1249-2/2022.

(6) The Applicant remedied the deficiencies in the Application in a letter registered on February 7, 2022, and requested the Authority to address the individual legal violation suffered by the Applicant within the framework of the data protection authority procedure, to establish the lack of voluntary consent, and to hold the Respondent liable for the failure to establish a legal relationship with the Applicant due to the non-provision of consent. The Applicant also requested that the Authority impose

a fine on the Respondent and sanction the Respondent in other ways depending on the facts revealed during the authority procedure.

(7) After remedying the deficiencies in the application, the data protection authority procedure commenced the following day, on February 8, 2022.

(8) The Authority subsequently extended the procedure ex officio to examine the practice of requesting consent for the copying of identity cards of the affected job applicants by the Respondent, as well as the taking of photographs, audio, and video recordings during the job application process, and the publication of these recordings in the press.

(9) Following this, the Authority, in its decisions dated February 15, 2022, under case number NAIH-1249-6/2022, March 11, 2022, under case number NAIH-1249-8/2022, May 23, 2022, under case number NAIH-1249-12/2022, and July 5, 2022, under case number NAIH-1249-14/2022, called upon the Respondent to provide a statement for the clarification of the facts.

(10) The Respondent replied to the Authority's decisions with letters registered on March 3, 2022, March 31, 2022, June 8, 2022, and July 21, 2022.

(11) Among other things, the Respondent's responses included a consent declaration titled "Consent for the Taking and Use of Photographs, Audio, and Video Recordings," signed on March 31, 2021, which stated that a former employee had signed the declaration but had denied consent.

(12) Considering that the Authority's position was that this former employee might have the most accurate information regarding the data processing practices—photography and publication—conducted by the Respondent, the Authority deemed it justified to request the official contact details of this former employee from the Respondent, and subsequently, after this personal data was made available to the Authority, to summon this person for a personal hearing as a witness at the Authority's headquarters (decision dated July 6, 2022, under case number NAIH-1249-15/2022). The witness's testimony was recorded in the minutes dated July 27, 2022, under case number NAIH-1249-17/2022.

(13) Additionally, on May 12, 2022, an employee of the Authority prepared a record under case number NAIH-1249-10/2022 regarding the viewing of images and videos published on the Respondent's Facebook page and official website.

(14) Subsequently, based on the evidence available to it, the Authority informed the Respondent in its decision dated September 6, 2022, under case number NAIH-1249-18/2022, that the evidentiary procedure in the data protection authority procedure had been completed and drew attention to the evidence revealed during the clarification of the facts for document inspection.

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taking into account the regulations, may become acquainted with and make further evidentiary motions. The Authority informed the Applicant of the same in its decision dated on the same day, under case number NAIH-1249-19/2022.

(15) The Applicant exercised their right to access documents at the Authority's headquarters on September 27, 2022, regarding which a protocol was prepared under case number NAIH-1249-24/2022.

(16) Concerning the Respondent, the Authority ensured access to the documents through the electronic transmission of copies of documents generated during the procedure that did not originate from the Respondent and were not sent to the Respondent, as stated in its decision dated October 25, 2022, under case number NAIH-1249-29/2022.

(17) Following the review of the documents, neither the Applicant nor the Respondent submitted any further statements or made additional evidentiary motions.

II. Clarification of the Facts

(18) According to the Respondent's statement, they take photographs and process personal data in

connection with this based on the consent of the data subject, as per Article 6(1)(a) of the General Data Protection Regulation. They attached the consent confirmation form. The purposes of this data processing are to document the Respondent's events and to enhance their positive perception through the use of photographs. The Respondent only takes photographs; no video or audio recordings are made for any specific purpose.

(19) According to the Respondent's statement, for the purpose of promoting their work and enhancing their positive perception, they only take photographs of individuals holding the positions of [...] and [...]. The photographs taken for this purpose are placed on the Respondent's website, with their faces obscured. The already anonymized images are sent to the website operator. The taking of photographs is done voluntarily, and the [...] give their consent verbally for the recording. If the [...] or [...] do not consent, no photographs will be taken of them. The Respondent sent photographs taken of [...] and [...]. The images created for the purpose of promoting the Respondent and enhancing their positive perception will be stored for two years if they are used (in press, on the website), so that a single image can be reused multiple times. However, if they are not used, they will be deleted immediately.

(20) In the case of taking photographs for the purpose of documenting events, the job position is irrelevant, as it pertains to the participants of the event. However, in the last two years – considering the pandemic – the events have been limited solely to the so-called award ceremonies. The photographs taken at the events are not forwarded but are placed in a shared folder accessible to all employees of the Respondent. Employees participating in the event are informed verbally during the event that the completed images will be available on the Respondent's shared drive. If an employee does not consent, no photographs will be taken of them at the Respondent's events. In the case of photographs taken for the purpose of documenting the event, the photographs will be kept for ten years following the event, so that the Respondent's employees can access them from the shared drive.

(21) According to the Respondent's statement, a total of 49 images were taken in 2021. Due to the coronavirus pandemic, the Respondent only held a ceremony on August 20, 2021, for which photographs were taken and can be found on the shared drive. These images will not be used on the website or Facebook page. According to the Respondent's statement, they were unable to obtain the consent statements from the participants of the ceremony due to the short deadline provided by the Authority; however, they will be obtained by a new deadline.

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would have been obtained. According to the Respondent, it is a generally accepted practice at such events that anyone who does not consent to photography, does not appear at the event, or indicates on-site that they do not consent to being photographed, will not be recorded. There was an instance at this event where an awardee did not appear, but there was no case where someone indicated a lack of consent.

(22) The Respondent, despite the Authority's request, did not send the photographs from the shared drive in electronic form that feature employees from the year 2021, citing that all photographs taken at or in connection with the Respondent and stored on the shared drive have been permanently deleted by the infocommunications group. According to the Respondent's statement, photographs taken to document the Respondent's events and to positively affirm the Respondent have also been deleted, thus they could not be sent despite the Authority's request. According to the Respondent's statement, photographs taken to positively affirm the Respondent can be viewed on the Respondent's official website and Facebook page. No photos were used in the press.

(23) According to the Respondent's statement, the video found under the job offer section on its website, which shows employees without masking or anonymization, is "embedded" content. The original video promoting the Respondent and encouraging work there – along with several other similar videos – was uploaded to the YouTube channel named [...] 4-8 years ago. Following the leadership change in 2019, the YouTube channel was not transferred, thus its content is not managed by the Respondent. With the contribution of these video contents and uploads, the Respondent suggested contacting a former employee who could provide details regarding the creation and public release of

these contents. According to the Respondent's statement, it is unaware of who currently manages and who previously managed the YouTube channel, which it believes is supported by the fact that the most recently uploaded video was uploaded 4 years ago.

(24) On April 27, 2022, two photographs of employees who participated in the Spartan competition were uploaded to the Respondent's Facebook page, identifying the individuals in a recognizable manner, to which the Respondent sent the statements of the two affected employees regarding the uploaded photograph. According to its statement, in this case, the photograph was uploaded to the Respondent's Facebook page in connection with the results achieved at a sports event completely independent of work, specifically with the consent of the employees, as a recognition of their performance. The photograph was taken and shared with the Respondent by the employees themselves. The placement of the photograph on the Facebook page primarily serves to acknowledge the physical performance of the employees, and on the other hand, to promote the Respondent's community and work.

(25) According to the Respondent's statement, the person cited as a witness, [...] held a position at the Respondent. The witness did not participate in the award ceremony organized by the Respondent – the award ceremony was held with a limited number of attendees due to the COVID situation – and no photographs were taken of them during their work.

(26) According to the Respondent's statement, the document titled "consent statement for the creation and use of photographs, audio and video recordings" is requested to be filled out by the Respondent from every employee during the recruitment process because photographs are also taken at the Respondent's events (e.g., award ceremonies). Given that the statement is based on consent, the employee can withdraw it at any time.

(27) The Respondent sent the Authority copies of all completed statements regarding photography. According to the Respondent's statement, it occurs that instead of filling out a negative statement upon entry, the affected individuals do not fill out a statement at all. The statements

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The Applicant has been maintaining a record since 2020, considering the consent to be negative in the absence of a completed declaration. The Applicant has also sent a copy of the record of the consent declarations.

(28) According to the Applicant's statement, the recruitment of employees and public officials occurs as follows: after the job advertisements are published, candidates are selected based on the received resumes, and those who are deemed suitable based on their qualifications and professional experience are invited for a personal interview. Following the personal interview, the most suitable candidate for the position to be filled is selected, for whom the relevant organizational unit fills out a so-called "recruitment initiation" form. The recruitment initiation is approved by the economic department, the human services department, and ultimately by the employer's representative. After the employer's approval, the human services department notifies the successful applicant and contacts them by phone and email. The condition for establishing the employment relationship is a medical examination within 30 days prior to the start of the employment relationship. Following the medical examination, the necessary declarations for establishing the employment relationship are completed in the human services department. In summary, the Applicant only requests the completion of the consent declarations mentioned in the current procedure from those individuals whose recruitment has been initiated and has also been approved by the employer's representative. The Applicant has sent completed and signed consent declarations for the creation and publication of photographs, audio, and video recordings. According to the Applicant's statement, typically, those who do not consent to the recording do not complete or sign the declaration either.

(29) Regarding the information on the taking of photographs, the Applicant states that during work – with the exception of [...] and [...] personnel – no photographs are taken; however, information about the data processing is available in the data protection folder of the shared drive managed by the Applicant, which contains all relevant information related to data processing. This information has been

sent by the Applicant to the Authority. Furthermore, according to the Applicant's statement, the Applicant employs a data protection officer who can provide information to the data subjects regarding data processing.

(30) According to the statement numbered III/404/2/2022, the Applicant only takes photographs, and there is no audio or video recording for any specific purpose; nevertheless, the document titled "Consent Declaration for the Creation and Use of Photographs, Audio, and Video Recordings" pertains to audio and video recording, while the document titled "Data Processing Information [...] Deputy Director of Organization on the Creation of Photographs and Video Recordings of Colleagues" pertains to the creation of photographs and video recordings. The Applicant responded that the harmonization of the declaration and the data processing information is in progress, and the discrepancy was caused by an administrative error.

(31) The Applicant further stated regarding the photographs that it pays special attention to the protection of employees' personal data, and therefore, the data is only transmitted in anonymized form to the Applicant's official website and to the website operator. The Applicant also handles declarations and documents related to the employment relationship that enter the personal file with enhanced protection in order to protect employees' personal data.

(32) According to the Applicant's statement, in order to verify the authenticity of the data, copies of employees' identification cards are made based on the consent pursuant to Article 6(1)(a) of the General Data Protection Regulation. However, neither at the time of application nor during the recruitment process is the consent declaration requested. The Applicant has sent the declaration regarding data processing as an annex. According to the Applicant's statement, there has been no instance where someone has refused consent; however, in light of the Authority's inquiry, they are working on establishing appropriate practices.

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(33) According to the Applicant's statement, after successful admission, they will inform the applicants via email regarding the medical fitness examination and the acquisition (moral certificate) and presentation of the necessary documents. Furthermore, according to the Applicant's statement, copies of identity documents will be placed in the personal file in accordance with Act CXCV of 2011 on Public Service Officials (hereinafter: Kttv.). The personal files must be kept for 50 years after the termination of the employment relationship, as stipulated in Section 184 (4) of the Kttv. The personal files are stored in a locked safe in the personal document archive. The personal document archive is a locked office with two doors, equipped with a negative seal, where only authorized individuals may enter, namely the employer and the human services department's personnel officers, whose job responsibilities include managing personal files. Complete copies of identity documents are certified by the Applicant's staff with a "certifying stamp" and are placed in the personal file; however, they will not be forwarded. The necessity of document copying is justified by the fact that the human services department performs payroll tasks in cooperation with the Hungarian State Treasury (hereinafter: MÁK), which requires the transmission of authentic and accurate data—not copies of documents—to MÁK. According to the Applicant's statement, the need to maintain contact with several other institutions justifies the ability to verify that they are working with accurate and available personal data.

(34) According to the Applicant's statement, they request the consent declaration after the initiation of the admission procedure but before the establishment of the employment relationship. Knowledge of the personal data recorded in the document is necessary for the preparation of the employment contract and the appointment document. The declarations are filled out before the establishment of the employment relationship to ensure the preparation of the documents necessary for the establishment of the public service or employment relationship. In cases where the employment relationship does not materialize—as in the case of the Applicant—the declarations will be destroyed with a protocol confirming this. The Applicant has sent a general information notice regarding the data processing for the purpose of establishing the employment relationship, which is accessible to the Applicant's staff in the shared folder.

(35) The Applicant also sent completed and signed consent declarations to the Authority.

(36) According to the Applicant's statement, considering that the Applicant's admission did not take place, the documents filled out by them and related to their person have been destroyed. The Applicant informed the Applicant electronically about the fact of destruction and sent the protocol regarding the destruction upon request. The Applicant and the Applicant confirmed all this to the Authority by sending the relevant documents.

(37) According to the Applicant's statement, the approval of the admission procedure and the signing of the appointment document fall under the authority of the employer's decision-maker. In the present case— not as a single and exceptional occasion—the employer exercised its decision-making power and did not approve the establishment of an employment relationship with the Applicant.

(38) In response to the Authority's question about whether an employment relationship can be established if the applicant does not consent to the taking of photographs or the copying of documents, the Applicant stated that such a case has not occurred with the Applicant, either previously or since. In practice, there have been cases where the person involved in the admission procedure did not have final documents—for example, their identity card was under production—however, even in such cases, the later presentation of the identity card did not prevent the establishment of the employment relationship.

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(39) The witness's testimony is recorded in the minutes dated July 27, 2022, with case number NAIH-1249-17/2022, according to which the witness had to return to the Applicant 1-2 weeks after the job interview, at which time they were required to fill out the necessary declarations for entry – for example: confidentiality declaration, declaration regarding work clothing – and present the necessary documents, as well as provide their personal data. The witness recalls that they were verbally informed that they could change their consent for the taking of photographs at any time in the future, and there were no obstacles to this. During the completion of the declarations, they did not receive any information, nor was there any possibility raised that the Applicant would not establish an employment relationship with them because they did not provide their consent for the taking of photographs. The witness stated that a close acquaintance of theirs still works at the Applicant, and to their knowledge, they had to fill out the same declarations, following the same procedure, before the establishment of the employment relationship, just like the witness.

The witness stated that group photos were taken of them and their colleagues during a team-building event, but they themselves decided to appear in the photos. The photos were not published; they were taken for personal use only, and in their opinion, these photos are not entirely linked to the Applicant, as they were not taken based on employer instructions. The witness stated that the emphasis was rather on the animals during the photo sessions, and they always ensured that the colleagues did not appear in these photos, were not recognizable, and only photos of the animals were published. These photos were published on the Applicant's [...] page and on their Facebook page. Only in the case of the puppies did it happen that an employee of the Applicant was visible in the photo; to their knowledge, the colleagues did not object to this, but no such photo was taken of the witness. The shelter staff created an Instagram page, which all employees have access to. On this page, a close acquaintance who currently works at the Applicant uploaded a video of the witness that was taken during their work. Before the publication, they were asked whether this could happen, and the witness agreed to the publication.

The witness is not aware of whether photographs, audio, and video recordings were made of other employees in different positions.

Apart from the consent declaration and the verbal information, the witness recalls receiving information about the making of photographs, audio, and video recordings, but they cannot precisely recall the content, as they had to fill out many declarations at once and received information about many things simultaneously. An employee of the Authority presented the relevant data processing information of the Applicant to the witness, who recognized the information, stating that it was provided to them by

the Applicant.

(43) The witness further stated that they consented to the making of copies and are not aware of any employee who did not consent to the making of document copies. An employee of the Authority presented the data processing information regarding document copying from the Applicant to the witness, who stated that they are familiar with the data processing information, which was presented to them by the Applicant before the establishment of the employment relationship during the completion of the declarations.

The witness also stated that they were aware that the Applicant has a YouTube channel, but to their knowledge, there is only one video on it, aimed at promoting adoption.

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(46) The Authority's staff member recorded in the memorandum dated May 12, 2022, NAIH-1249-10/2022, regarding the viewing of images and video recordings published on the Applicant's Facebook page and official website, that as of January 21, 2022, it can be established that 23 photographs have been uploaded to the Applicant's Facebook page, in which employees are visible. Of the 23 photographs, 7 are related to job advertisements, in which the individuals can be identified, but it cannot be determined whether they are employees of the Applicant; however, these photographs are likely stock photos intended for illustration. Among the remaining 16 photographs, neither employees nor third parties can be clearly identified.

(47) During the specified period, 8 photos were uploaded to the Applicant's website, in which employees cannot be identified. Similarly, employees cannot be identified in the photographs found under the [...] menu on the Applicant's page. However, in the video under the job offer menu, employees are visible without masking.

III. Applicable Legal Provisions

(48) According to Article 2 (1) of the General Data Protection Regulation, the General Data Protection Regulation must be applied to the processing of personal data that is carried out in whole or in part by automated means, as well as to the processing of personal data that is not carried out by automated means but forms part of a filing system or is intended to form part of a filing system.

(49) According to Section 2 (2) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), the General Data Protection Regulation must be applied with the supplements specified in the provisions indicated therein.

(50) According to Section 38 (2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly accessible data, and to facilitate the free movement of personal data within the European Union.

(51) According to Section 38 (2a) of the Infotv., the tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority with respect to legal entities under the jurisdiction of Hungary in accordance with the provisions specified in the General Data Protection Regulation and this Act.

(52) According to point b) of Section 38 (3) of the Infotv., in the exercise of the tasks specified in Sections 38 (2) and (2a), the Authority shall conduct a data protection authority procedure at the request of the data subject and ex officio, as specified in this Act.

(53) According to Section 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may initiate a data protection authority procedure ex officio.

(54) According to Section 103 (1) of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), in ex officio procedures, the provisions of this Act concerning procedures initiated upon request shall be applied with the deviations contained in this chapter.

(55) In the absence of differing provisions in the General Data Protection Regulation, the provisions of

the Ákr. shall apply to the data protection authority procedure initiated upon request with the deviations specified in the Infotv.

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(56) According to Article 4(1) of the General Data Protection Regulation: “personal data”: any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

(57) According to Article 4(2) of the General Data Protection Regulation: “processing”: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.”

(58) According to Article 4(7) of the General Data Protection Regulation: “controller”: the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for the designation of the controller may also be provided for by Union or Member State law.”

(59) According to Article 4(11) of the General Data Protection Regulation: “the data subject's consent”: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.”

(60) According to Article 5(1)(b) and (c) of the General Data Protection Regulation: “Personal data: b) shall be collected for specified, legitimate, and clear purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes in accordance with Article 89(1) (“purpose limitation”); c) shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”).”

(61) According to Article 6(1)(a) of the General Data Protection Regulation: “The processing of personal data shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes.”

(62) According to Article 12(1) of the General Data Protection Regulation: “(1) The controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication referred to in Articles 15 to 22 and 34 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when the information is addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject is proven by other means.”

(63) According to Article 13 of the General Data Protection Regulation: “(1) Where personal data are collected from the data subject, the controller shall provide the data subject with the following information at the time of obtaining the personal data:

a) the identity and contact details of the controller and, where applicable, of the controller's representative;

b) the contact details of the data protection officer, where applicable;

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c) the purpose of the intended processing of personal data, as well as the legal basis for the processing;

- d) in the case of processing based on point (f) of paragraph 1 of Article 6, the legitimate interests of the data controller or a third party;
- e) where applicable, the recipients of the personal data or categories of recipients, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country or an international organization, as well as the existence or absence of a Commission adequacy decision, or in the case of transfers mentioned in Article 46, Article 47, or the second subparagraph of paragraph 1 of Article 49, the identification of appropriate and suitable safeguards, as well as a reference to the means of obtaining a copy of those safeguards or the availability thereof.
- (2) In addition to the information referred to in paragraph (1), the data controller shall provide the data subject, at the time of obtaining the personal data, with the following additional information in order to ensure fair and transparent processing:
- a) the retention period for the personal data, or, if that is not possible, the criteria used to determine that period;
- b) the data subject's right to request access to their personal data from the data controller, to request rectification, erasure, or restriction of processing of their personal data, and to object to such processing, as well as the data subject's right to data portability;
- c) in the case of processing based on point (a) of paragraph 1 of Article 6 or point (a) of paragraph 2 of Article 9, the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is based on a legal or contractual obligation or is a requirement necessary to enter into a contract, as well as whether the data subject is obliged to provide the personal data and the possible consequences of failing to provide such data;
- f) the fact of automated decision-making as referred to in paragraphs 1 and 4 of Article 22, including profiling, as well as at least in those cases, information about the logic involved and the significance and the expected consequences of such processing for the data subject.
- (3) If the data controller intends to carry out further processing of personal data for a purpose other than that for which the personal data were collected, it shall provide the data subject with information about that other purpose and all relevant supplementary information referred to in paragraph (2) prior to the further processing.
- (4) The provisions of paragraphs (1), (2), and (3) shall not apply if and to the extent that the data subject already has the information.”
- (64) According to paragraph 2 of Article 58 of the General Data Protection Regulation: “In exercising its corrective powers, the supervisory authority:
- a) warns the data controller or the processor that certain planned processing operations are likely to infringe the provisions of this Regulation;
- b) reprimands the data controller or the processor if their processing activities have infringed the provisions of this Regulation;
- c) instructs the data controller or the processor to comply with the data subject's request to exercise their rights under this Regulation;
- d) instructs the data controller or the processor to bring processing operations into compliance with the provisions of this Regulation – in a specified manner and within a specified time frame, where applicable;
- e) instructs the data controller to inform the data subject of a personal data breach;
- f) temporarily or permanently restrict processing, including prohibiting processing;
- g) orders the rectification or erasure of personal data or the restriction of processing in accordance with Articles 16, 17, and 18, as well as paragraph 2 of Article 17;
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- paragraph and in accordance with Article 19, orders the notification of the recipients about this, with whom or which the personal data has been shared;
- h) revokes the certificate or instructs the certifying body to revoke the certificate issued in accordance with Articles 42 and 43, or instructs the certifying body not to issue the certificate if the conditions for

certification are not or are no longer met;

- i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph; and
- j) orders the suspension of data flows to a recipient in a third country or an international organization.”

(65) According to Article 83(2) and (5) of the General Data Protection Regulation: “[...]”

(2) Administrative fines shall be imposed depending on the circumstances of the case, in addition to or instead of the measures mentioned in points (a)–(h) and (j) of Article 58(2). In determining whether an administrative fine is necessary and in establishing the amount of the administrative fine, the following shall be duly taken into account in each individual case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purposes of the processing concerned, as well as the number of data subjects affected by the infringement and the level of damage suffered by them;
- b) the intentional or negligent character of the infringement;
- c) any action taken by the controller or processor to mitigate the damage suffered by data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32;
- e) any relevant previous infringements by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible negative effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the infringement was reported by the controller or processor and, if so, how detailed the report was;
- i) if the controller or processor has previously been subject to any of the measures referred to in Article 58(2) in relation to the same subject matter, compliance with those measures;
- j) whether the controller or processor adhered to approved codes of conduct pursuant to Article 40 or approved certification mechanisms pursuant to Article 42; and
- k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a result of the infringement.

[...]”

(5) The infringement of the following provisions shall be subject to an administrative fine of up to EUR 20,000,000, or in the case of undertakings, an amount not exceeding 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- a) the principles of processing – including the conditions for consent – in accordance with Articles 5, 6, 7, and 9;
- b) the rights of data subjects in accordance with Articles 12–22;
- c) the transfer of personal data to a recipient in a third country or an international organization in accordance with Articles 44–49;
- d) obligations under national law adopted pursuant to Chapter IX;
- e) failure to comply with an instruction of the supervisory authority under Article 58(2), or failure to comply with a request for temporary or permanent limitation of processing or suspension of data flows, or failure to provide access in violation of Article 58(1).

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[...]”

(66) According to Section 61 (4) b) of the Infotv.: “The amount of the fine may range from one hundred thousand to twenty million, if the fine imposed in the decision of the data protection authority is to be paid by a budgetary body, in the case of a fine imposed under Article 83 of the General Data Protection Regulation.”

(67) Based on Section 71 (2) of the Infotv.: “The Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings.”

(68) According to Section 75/A of the Infotv.: “The Authority exercises its powers set out in paragraphs

(2)-(6) of Article 83 of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or data processor, in accordance with Article 58 of the General Data Protection Regulation.”

(69) According to Section 1 (1) a) of the Kttv.: “The scope of this law – in the absence of a different provision of law for the fulfillment of international legal or EU legal obligations – extends to the public service relationship of the public officials and public service administrators of the mayor's office of the local government representative body, the public area supervision, and the joint municipal office (hereinafter: the office of the representative body).”

(70) According to Sections 177 (1)-(2) of the Kttv.: “(1) The state administrative body maintains a registry covering the data scope defined in Annex 2 of this law regarding the government official (hereinafter: public service basic registry). In areas not listed in Annex 2 – in the absence of a different provision of law – data collection may not be carried out, and such data may not be recorded.

(2) The purpose of the public service basic registry is to ensure the management of data necessary for exercising rights and fulfilling obligations arising from the governmental service relationship for the subjects of the governmental service relationship.”

(71) According to Section 184 (1) of the Kttv.: “Among the documents related to the governmental service relationship of the government official, the following must be stored together (personal file): the government official's photograph not older than five years, the data sheet of the public service basic registry, the curriculum vitae, the official certificate issued by the criminal record authority, the oath document, the appointment and its modification, the appointment of the chief official, the managerial appointment, the award of title, documents regarding classification or retention, as well as transfer, performance evaluation, qualification, the document terminating the governmental service relationship, the decision imposing a disciplinary penalty currently in effect, and a copy of the public service certificate.”

(72) According to Section 258 (9) of the Kttv.: “The state administrative body maintains a labor registry for the fulfillment of rights and obligations arising from the employment relationship. The data content of the registry – except for data relevant only to government officials – corresponds to the data of the public service basic registry of the government official according to Annex 2. The rules applicable to the public service basic registry shall apply to the labor registry and the provision of data from it, with the stipulation that the state administrative body shall manage the data in the labor registry for fifteen years following the termination or cessation of the employment relationship.”

IV. Decision

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(73) According to the definitions in the General Data Protection Regulation, the face, image, identification document of a natural person, or the data content thereof is considered personal data. Any photograph, video recording, or copy made of personal data, as well as any operation performed on personal data, qualifies as data processing.

****1. The Applicant's Individual Rights Violation****

(74) In the application for initiating the data protection authority procedure, the Applicant objected that during the application process for a public authority presenter position, they were required to fill out consent statements before the actual establishment of the employment relationship, consenting to the taking of photographs, audio, and video recordings of them during work, which could be published in the press without separate compensation. Additionally, the Applicant stated that they were also made to fill out a consent statement allowing for a photocopy of their official documents to be made.

(75) According to the Applicant, the Respondent did not establish an employment relationship with them because they did not consent to the data processing and expressed concerns regarding the data processing during the recruitment procedure.

(76) The Authority attempted to prove the Applicant's assertion regarding the lack of voluntariness; however, the available information did not support the Applicant's position, considering that both the Respondent's statement and the witness testimony indicated that it is not mandatory to consent to the taking of photographs. The Respondent established employment relationships with employees without obtaining consent for the taking of photographs, as evidenced by the consent statements where the affected employee crossed out the word "consent" or wrote on the statement that they do not consent to the data processing. According to the Respondent's statement, there were also cases where the person involved in the recruitment procedure did not have final documents—such as their identification card being under production—yet this did not prevent the establishment of the employment relationship, as the identification card could be presented later.

(77) Therefore, the Authority does not have any evidence to support that the Respondent did not establish a relationship with the Applicant because they did not consent to the data processing or raised objections to it.

(78) Furthermore, it is almost impossible to prove; it cannot be reconstructed under what circumstances the Applicant's objections to the data processing occurred and how the Respondent reacted. Based on the case described in the Applicant's request, it is likely that the review of the decision was not specifically due to the lack of a consent statement, but rather due to the resulting disputed situation, communication, or other circumstances.

(79) In this case, the Applicant and the Respondent made contradictory statements, and there is no other evidence supporting a violation; rather, contrary evidence is available to the Authority. In light of this, the Authority rejects the part of the Applicant's request concerning the individual rights violation.

****2. The Respondent's General Data Processing Practice****

(80) Article 5 of the General Data Protection Regulation contains the main principles that must be considered during the processing of personal data and which must continuously be upheld during data processing. According to the accountability requirement in Article 5(2) of the General Data Protection Regulation, the data controller is responsible for compliance with data protection principles and must be able to demonstrate such compliance.

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for verification. Based on this, the data controller is obliged to document and record the data processing in such a way that its legality can be proven subsequently.

(81) According to the principle of purpose limitation for data processing as set out in Article 5(1)(b) of the General Data Protection Regulation, personal data may only be processed for specified, explicit, and legitimate purposes. In accordance with the principle of data minimization as stated in Article 5(1)(c) of the General Data Protection Regulation, the personal data processed must be adequate and relevant in relation to the purposes of the processing and must be limited to what is necessary.

(82) An additional requirement for the legality of data processing is that the processing can only take place based on one of the legal bases referred to in Article 6(1) of the General Data Protection Regulation, and that the data controller provides appropriate information containing the details specified in Articles 13(1)-(2) of the General Data Protection Regulation regarding the data processing.

(83) In the present case, the Authority examined four data processing operations.

(84) One involves the taking of photographs for the purpose of documenting the events of the Applicant. The other two concern the taking and publication of photographs for the purpose of promoting the positive perception of the Applicant. The fourth involves the copying of documents for the purpose of verifying the authenticity of the data. At the same time, according to the data processing information titled "Data Processing Information [...] Data Processing through Document Copying during the Recruitment Procedure of the Human Resources Department," submitted to the Authority, the purpose of the data processing related to document copying is "appointment – the establishment of a public service employment relationship, or employment contract – the establishment of an employment relationship." The Applicant referred to the consent of the data subjects as the legal basis

for each data processing operation in accordance with Article 6(1)(a) of the General Data Protection Regulation.

(85) The Authority qualifies the taking of photographs by the Applicant for the purpose of documenting their own events as a legitimate data processing purpose, as well as the taking and publication of photographs for the purpose of promoting their positive perception.

(86) The document copying conducted for the purpose of verifying the authenticity and consistency of the data can also be a legitimate data processing purpose in accordance with what is stated in the Applicant's data processing information for the purpose of verifying personal data processed for the establishment and maintenance of the legal relationship.

(87) In the present case, the legal basis of consent referred to by the Applicant can only be appropriately invoked if its conditions are met.

(88) According to the definition of consent in the General Data Protection Regulation, the following fundamental requirements can be established⁴:

(89) Consent must be based on adequate information. Adequate information is that through which data subjects become aware of the data processing related to their personal data, and through this information, the right to informational self-determination can be exercised: the data processing can be lawful if the circumstances are fully known to the data subjects. The requirement for prior information of the data subject is detailed in Article 13 of the General Data Protection Regulation.

4 Further assistance regarding the applicability conditions of the legal basis of consent is provided by the European Data Protection Board (an independent European advisory body dealing with issues related to data protection and privacy) in its guidelines on consent, document number 5/2020, which can be accessed at the following link: <https://naih.hu/europai-adatvedelmi-testulet-iranymutatasai-uj-b-eta?download=395:5-2020-szamu-iranymutatas-az-eu-2016-679-rendelet-szerinti-hozzajarulasrol>
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(90) One of the most important components of the validity of consent is the voluntariness of the will of the data subject, free from external influence, which is realized when the data subject has a genuine choice available. If the data subject does not have a genuine choice, feels compelled to give consent, or will face negative consequences if they do not provide their consent, then the consent is not valid.

(91) The requirement for the data subject to express their will through a specific, clear act of declaration or confirmation means, on one hand, that consent must be an active behavior; the failure to perform an active behavior [for example, not unchecking a checkbox] cannot be considered a definite and unequivocal consent. On the other hand, clear and explicit consent is also purpose-bound consent: it is considered consent given for a specific, concrete data processing purpose. As a general rule, the data cannot be used for other data processing purposes.

2.1. Copying of Employees' Documents

(92) In relation to the copying of documents, it must be taken into account that the principle of data minimization ensures that only the narrowest, justified scope of data is processed in relation to the purpose of data processing. This also means that personal data that do not affect the achievement of the purpose of data processing cannot be collected. In the present case, the scope of personal data that can be processed by the Applicant in connection with employment relationships is determined by the Public Service Act (Kttv.) for both public service and employment relationships. The annex to the Kttv. contains the scope of data for the public service basic registry, while Section 258 (9) of the Kttv. provides for the labor registry, which, according to this legal provision, has the same data content as the data of the public service basic registry.

(93) It is a legitimate interest for the Applicant to verify the authenticity of personal data necessary for the establishment and maintenance of the legal relationship; however, this fundamentally corresponds to the presentation of the document, and the handling of copies – according to the relevant data processing information – of the identity card, address card, health insurance card, and tax identification card must be examined in terms of compliance with the requirements of purpose-bound data

processing and data minimization.

(94) The annex to the Kttv. does not include the document identifier found on the identity card, the document identifier found on the address verification authority document, and the personal identifier, nor the copy of any of these documents as data to be recorded in the public service basic registry – and labor registry. Section 184 (1) of the Kttv. further states what documents must be stored in the personal file related to the data subject's legal relationship, which list also does not include copies of documents. Therefore, by copying the documents specified in the data processing information, the Applicant stores personal data and documents containing personal data that are not required by the Kttv. for the establishment and maintenance of the legal relationship.

(95) In order to verify data consistency, the Authority's position is that – instead of copying – a lawful additional measure with the documents could be, for example, if the Applicant's personnel officer requests the data subject to fill out a declaration stating that they have presented their documents containing the personal data necessary for the establishment and maintenance of the legal relationship. Furthermore, the so-called "four eyes principle" can also be applied, where two personnel officers of the Applicant view the document presented by the data subject and both confirm the accuracy of the recorded personal data.

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(96) Based on all of the above, the Authority establishes that the Applicant manages the full copies of the documents of the data subjects in violation of the principle of data minimization, thereby breaching Article 5(1)(c) of the General Data Protection Regulation.

(97) Furthermore, regarding the Applicant's relevant "data processing information [...] Data processing during the recruitment procedure by copying documents" data processing information, it can be established that according to the Kttv. (Act on the Legal Status of Public Servants), the Applicant is obliged to process the personal data recorded on the document for 50 years from the termination of the data subject's relationship, rather than the copy of the documents. However, the processing of personal data recorded in the public service and labor registry is not based on consent, contrary to the Applicant's declaration and data processing information, but is mandated by the Kttv. Therefore, according to Article 6(1)(e) of the General Data Protection Regulation, the data processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the Applicant. Consent cannot be applied as a valid legal basis for this data processing.

(98) The Kttv. thus makes the processing of personal data mandatory, not the processing of the copy of the document. The copy of the documents must be deleted after verifying the consistency of the data.

(99) The Authority – in a limited scope – will only accept the creation of copies based solely on the consent of the data subjects – provided that all conditions are fully met – if the Applicant, as the data controller, establishes a practice whereby copies are made only of those personal data for which the legislation governing the employment relationship – the Kttv. referred to by the Applicant – otherwise grants permission, and until the consistency of the data has been verified. In this case, while copying the personal data found on the document is indeed a data processing operation, it does not constitute a new purpose of data processing compared to the original purpose of data collection, but rather a means of data collection related to the original data processing purpose and legal basis, which otherwise helps ensure the accuracy of the data. This can be achieved by ensuring that only the personal data to be verified, which must be stored in the basic registry according to the Kttv., is visible on the copy of the document, while any additional, unnecessary personal data that should not be processed according to the Kttv. must be obscured.

(100) Regarding the information on the copying of documents, it must be taken into account that the information must comply with the requirements set out in Articles 13(1)-(2) of the General Data Protection Regulation, and appropriate information must be provided about the information specified therein. In this data processing information – as opposed to the provided information regarding

document copying – the scope of the processed personal data must be precisely specified. It is also important that according to the Kttv., the Applicant is obliged to process the personal data recorded in its registries for 50 years from the termination of the data subject's relationship, not the copy of the documents. The copy of the documents must be deleted after verifying the consistency of the data. However, the processing of personal data recorded based on the documents is not based on consent, as explained above.

(101) Furthermore, the currently applied data processing information is inadequate regarding the information on the rights of the data subjects, as it provides incorrect information about the right to object, considering that the Applicant erroneously based the data processing on consent; however, the right to object cannot be exercised in cases of data processing based on consent.

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(102) According to Article 29 of the Data Protection Directive⁵ in force prior to the General Data Protection Regulation, the Data Protection Working Group⁶ (hereinafter: Working Group) has provided guidance⁷ regarding data protection officers, which, although Article 37(7) of the General Data Protection Regulation does not require the data processing information to include the name of the data protection officer, the Working Group recommends as good practice that the organization informs its employees of the name and contact details of the data protection officer. In light of the guidance, the Authority also recommends the publication of the name of the data protection officer for the employees of the Applicant, so that they know whom to turn to within the organization for any inquiries related to data protection.

(103) Based on all of the above, in addition to the fact that the Applicant unnecessarily processes a complete copy of the documents of the data subjects, the information notice does not comply with the requirements set out in Articles 13(1)-(2) of the General Data Protection Regulation.

2.2. Taking Photographs of Employees

(104) The Authority has no other evidence available, apart from the statements of the Applicant, the testimony of the witness, and a review of the Applicant's website, to confirm that the Applicant would take photographs of its employees without their consent and publish them on its website or Facebook page without their consent. Furthermore, the Applicant publishes photographs of employees in an anonymized, non-identifiable manner on these public pages. Photographs taken at events are not published. Therefore, the Authority does not establish any unlawful data processing practice in this regard. Regarding the video published on the YouTube channel promoting the Applicant and encouraging work there, the Applicant did not provide substantial comments, and the Authority has no evidence available in this regard; however, upon reviewing the Applicant's page again, the video is no longer accessible.

(105) Based on the information available to the Authority, no violation can be established concerning the voluntariness and clear declaration of consent regarding the taking and publication of photographs, considering that in the contested data processing cases, the lack of consent does not result in any disadvantage for the data subjects, and the Applicant has the data subjects sign a consent declaration.

(106) For the data processing related to the taking of photographs, the Applicant uses two documents, one being the document titled "Consent Declaration for the Taking and Use of Photographs, Audio and Video Recordings" as a consent declaration, which pertains to the taking of audio and video recordings, while the other is the document titled "Data Processing Information [...] Deputy Director of Organization on the Taking of Photographs and Video Recordings of Colleagues" as data processing information, which pertains to the taking of photographs and video recordings.

(107) According to the Applicant's statement, both documents incorrectly contain provisions regarding the taking of video and audio recordings due to an administrative error; however, in reality, only photographs of employees are taken. According to Article 12(1) of the General Data Protection Regulation, it is a requirement that the information provided is clear and understandable. Consequently, the information must reflect accurate information.

5 Directive 95/46/EC of the European Parliament and of the Council on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

6 The Data Protection Working Group was an independent European advisory body dealing with data protection and privacy issues prior to the starting date of the application of the General Data Protection Regulation, replaced by the European Data Protection Board.

7 The guidance can be accessed at the following link: <https://naih.hu/europai-adatvedelmi-testulet-iranymutatasai-uj-beta?download=433:iranymutatas-az-adatvedelmi-tisztviselokkel-kapcsolatban-wp24319>

may include, in this case, that photographs are taken of the Applicant's employees, but it does not include that audio and video recordings are also made. Therefore, the data processing information and the consent statement need to be amended.

(108) The data processing information collectively includes the two data processing purposes: the documentation of the Applicant's internal events and the strengthening of its positive image. However, for the sake of transparency, these purposes and the related additional data processing information must be separated so that the data subject is aware of the two different data processing purposes and their circumstances, considering that with this knowledge, they can – if applicable – lawfully give their consent.

(109) According to the statements made by the Applicant, the designation of the categories of data subjects in the information is not appropriate. According to their statement, all employees may be data subjects in the case of photographs taken at events, while in the case of photographs taken for the purpose of strengthening the positive image, only [...] and [...]. In contrast, the information states that the data subjects are the employees of the board of directors.

(110) The categories of recipients must also be amended, considering that, according to the Applicant's statement, only photographs taken for the purpose of strengthening the positive image may be published on the website or the Facebook page, while photographs taken at events may not be. In contrast, the information contains the incomprehensible information in the category of recipients that the [...] website manager is in an anonymized format.

(111) Regarding the rights of data subjects, the rectification of data is difficult to interpret in the context of taking photographs – according to the Authority's position, in certain cases, the date of the photograph may be relevant – while the right to object cannot be exercised in cases of data processing based on consent. Furthermore, it is necessary to amend this part of the information in such a way that the rights of data subjects correspond to the specific data processing, meaning that the information should not contain the paragraph stating: “the deletion of such data cannot be performed by [...] if its processing is necessary for the exercise of public authority, the fulfillment of a legal obligation, or for the submission, enforcement, or defense of legal claims.” The Applicant is not excluded from processing and using photographs taken of employees based on their consent for the submission, enforcement, or defense of legal claims, but these may not be processed for the exercise of public authority and legal obligations, but rather based on legitimate interests.

(112) In light of the writings of the Data Protection Working Group regarding data protection officers, the Authority also recommends the publication of the name of the data protection officer in this information for the Applicant's employees so that they know whom to turn to within the organization for any data protection inquiries.

(113) In addition, for the data processing aimed at strengthening the Applicant's positive image, the information must indicate the separate data processing operation whereby, in certain cases, the photograph may be published on the Applicant's website or Facebook page – according to the Applicant's statement, in an anonymized manner. This can occur based on the separate consent of the data subject.

(114) The consent statement must also be amended due to the separate data processing purposes, as well as the publication of photographs, in such a way that consent can be given separately for each data processing, but also independently of each other. In consideration of the principle of data

minimization, the identification card number must also be removed from the statement. The consent statement must be consistent with the data processing information and can only include the taking and publication of photographs. Furthermore, the duration of data processing should not only correspond to the duration of the legal relationship; in certain cases, the data subject may withdraw their consent, and the durations specified by the Applicant must also be taken into account.

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The Authority also considers it an appropriate solution that the consent statement merely refers back to the data processing information notice, thus it is not necessary to record specific data processing information in the consent statement.

(115) Based on all of the above, the Authority establishes that the Applicant did not provide adequate information regarding the taking and publication of photographs, thereby violating Article 13(1)-(2) of the General Data Protection Regulation.

V. Legal Consequences

(116) The Authority, based on Article 58(2)(b) of the General Data Protection Regulation, establishes ex officio that the Applicant processes complete copies of the data subjects' documents in violation of the principle of data minimization, thereby violating Article 5(1)(c) of the General Data Protection Regulation.

(117) The Authority, based on Article 58(2)(b) of the General Data Protection Regulation, establishes ex officio that the Applicant did not provide adequate information regarding either the copying of documents or the taking and publication of photographs, thereby violating Article 13(1)-(2) of the General Data Protection Regulation.

(118) The Authority, based on Article 58(2)(c) of the General Data Protection Regulation, instructs the Applicant to cease the data processing related to the complete copying of the content of documents and to delete the previously unnecessarily made copies. In the future, the Applicant may only make copies of the documents in accordance with the provisions of point 2.1 of point 2 of section IV of this decision, and must delete them as soon as the verification of data consistency has been completed. The Authority further instructs the Applicant to provide adequate information to the data subjects regarding the data processing activities examined in this procedure and their circumstances.

(119) The Authority rejects the Applicant's request for the imposition of a data protection fine, as the application of this legal consequence does not directly affect the Applicant's rights or legitimate interests, and such a decision by the Authority does not create rights or obligations for the Applicant; therefore, in this regard, the Applicant does not qualify as a client concerning the application of this legal consequence falling within the scope of public interest enforcement according to Section 10(1) of the Administrative Procedure Act, and – since it does not meet the requirements of Section 35(1) of the Administrative Procedure Act, there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

(120) Nevertheless, the Authority has ex officio examined whether it is justified to impose a data protection fine against the Applicant. In this context, the Authority considered all circumstances of the case based on Article 83(2) of the General Data Protection Regulation, Section 61(4)(b) of the Information Act, and Section 75/A of the Information Act, and established that in the case of the violations uncovered during this procedure, a warning would neither be proportional nor have a deterrent effect; therefore, the imposition of a fine is necessary.

(121) In determining the amount of the fine, the Authority primarily took into account that the violations committed by the Applicant qualify as violations belonging to the higher fine category according to Article 83(5)(b) of the General Data Protection Regulation.

(122) The Authority considered as an aggravating circumstance in determining the amount of the data protection fine that

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- The copying of documents that violates the principle of data minimization and the inadequate

information affected 303 main employees based on the aggregated average statistical headcount available on the Respondent's website for the second quarter of 2022 [General Data Protection Regulation Article 83(2)(a)];

- The legal harm caused by the data processing carried out by the Respondent was due to the Respondent's negligent behavior and data processing practices [General Data Protection Regulation Article 83(2)(b) and (d)];
- The violations committed by the Respondent affected employees in a subordinate relationship with it [General Data Protection Regulation Article 83(2)(k)].

(123) In determining the amount of the data protection fine, the Authority took into account the mitigating circumstances that

- The Respondent has not yet been sanctioned for violating the General Data Protection Regulation [General Data Protection Regulation Article 83(2)(e)];
- The personal data affected by the violation do not belong to the special categories of personal data [General Data Protection Regulation Article 83(2)(g)];
- The Authority exceeded the administrative deadline [General Data Protection Regulation Article 83(2)(k)].

(124) The Authority did not consider the circumstances under Article 83(2)(c), (f), (h), (i), and (j) of the General Data Protection Regulation to be relevant in determining the data protection fine against the Respondent, as they cannot be interpreted in relation to the specific case.

(125) In imposing the fine, the Authority considered that according to the Respondent's budget for 2021 available on its website, the total amount of its budgetary revenues is approximately 179,000,000 forints, while the amount of its financing revenues is approximately 2,531,557,000 forints, thus the imposed data protection fine is distant compared to the maximum fine that can be imposed.

VI. Other Issues:

(126) The Authority's jurisdiction is defined by Section 38(2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(127) The Authority's current decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication according to Section 82(1) of the Ákr. According to Section 112 of the Ákr., and Section 116(1) and (4)(d) of the Ákr., as well as Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(128) According to Section 135 of the Ákr., the obligated party is required to pay a late fee corresponding to the legal interest rate if it fails to fulfill its monetary payment obligation by the deadline.

(129) According to Section 6:48(1) of Act V of 2013 on the Civil Code, in the case of a monetary debt, the obligated party is required to pay late interest equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay, starting from the date of delay.

(130) The rules of administrative litigation are defined by Act I of 2017 on the Code of Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., the administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., in a legal dispute where the court is exclusively competent, legal representation is mandatory. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(131) Section 29(1) of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on the Civil Procedure Code is applicable, and according to Section 9(1)(b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services, the client's legal representative is obliged to maintain electronic communication.

(132) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information on the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp.

(133) The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The initiating party is exempt from the advance payment of the fee according to Section 59(1) and Section 62(1)(h) of the Itv.

(134) If the Respondent does not properly prove the fulfillment of the prescribed obligations and monetary payment obligations, the Authority will consider that the obligation has not been fulfilled by the deadline. According to Section 132 of the Ákr., if the Respondent does not comply with the obligations set forth in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82(1) of the Ákr. According to Section 133 of the Ákr., the enforcement is ordered by the authority that made the decision unless otherwise provided by law or government decree. According to Section 134 of the Ákr., the enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government regulation in a local government authority matter. According to Section 61(7) of the Infotv., regarding the obligation to perform a specific act, to behave in a certain way, to tolerate, or to cease a specific behavior contained in the Authority's decision, the Authority will carry out the enforcement.

(135) The Authority exceeded the one hundred and fifty-day administrative deadline according to Section 60/A(1) of the Infotv. Therefore, based on Section 51(b) of the Ákr., it will pay ten thousand forints to the Applicant – at their choice – by bank transfer or postal order.

Dated: Budapest, February 23, 2023.

Dr. Attila Péterfalvi

President

Professor Emeritus